



890 Vusi Mzimela Road
CATO MANOR
DURBAN
umbilotemple@gmail.com

UMBILO SHREE AMBALAVAANAR ALAYAM
UMBILO SHREE DRAUPADDIAMMEN ALAYAM
UMBILO TEMPLE (2nd River Temple)

DECLARED A NATIONAL MONUMENT [ESTABLISHED 1875]
PBO No.: 930043381 – NPO No.: 104-140 [Section 30 (3)/10 (1)]

BANKING DETAILS: NEDBANK // BRANCH: 198765 // ACCOUNT NO.: 1304036316 // REF: NAME + PRAYER TYPE

MEMORANDUM OF AGREEMENT (MOA)

This **MOA** is made and entered into on this 22nd day of **September 2025**, by and between:

Umbilo Shree Ambalavaanar Alayam (“the Alayam”), situated at 890 Vusi Mzimela Road, Cato Manor, Durban and

Innovate IT (IIE Varsity College Westville Students), (“the Partner”), with the domicile address being, 1 Link Rd, St James Ave & Link Rd, Westville, 3630.

1. Purpose

This Agreement sets out the terms and conditions governing the relationship between the Alayam and the Partner in respect of:

- The provision of services including but not limited to **creating a website and an App** for the Alayam.

2. Roles & Responsibilities

- The **Alayam** shall:
 - Provide the Partner with the necessary information to fulfil their obligations.
 - Implement **strict financial and operational controls** to ensure proper use of all funds and resources.
 - Provide reports or updates upon reasonable request.

- The **Partner** shall:
 - Deliver services in accordance with agreed specifications, timelines, and standards.
 - Treat all information received from the Alayam as **confidential**.
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3. Confidentiality & Intellectual Property

- The Partner agrees to maintain strict confidentiality in respect of all Alayam information.
 - Any designs, materials, or intellectual property created for the Alayam shall be the **exclusive property of the Alayam**.
 - A **Non-Disclosure Agreement (NDA)** is attached as **Annexure A** and forms part of this **MOA**.
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4. Reporting & Transparency (for Donors/Sponsors)

The Alayam shall, upon reasonable request, provide the Partner with a brief written summary of how funds or resources have been applied, in alignment with the Alayam's financial accountability measures.

5. Indemnity & Limitation of Liability (for Service Providers)

The Partner hereby indemnifies and holds harmless the Alayam, its trustees, members, and representatives against any loss, damage, injury, or claim arising from the Partner's negligence, misconduct, or failure to comply with this Agreement. The Alayam shall not be liable for indirect or consequential damages of any kind.

6. Force Majeure

Neither party shall be held liable for failure to perform its obligations where such failure arises from circumstances beyond its reasonable control, including but not limited to acts of God, natural disasters, pandemics, strikes, or government restrictions.

7. Duration & Termination

- This Agreement shall commence on 22 September 2025 and remain in effect until 20 November 2025 unless terminated earlier by either party on **30 days' written notice**.
 - Either party may terminate immediately in the event of material breach.
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8. Dispute Resolution

Any disputes arising from this Agreement shall first be addressed through good faith consultation. If unresolved, disputes shall be referred to the courts of **Durban, KwaZulu-Natal**, under the laws of the Republic of South Africa.

9. Entire Agreement

This MOA, together with any annexures, constitutes the full and binding agreement between the parties. No amendment shall be valid unless in writing and signed by both parties.

Continued

Annexure A

NON-DISCLOSURE AGREEMENT (NDA)

This Non-Disclosure Agreement (**“Agreement”**) is entered into on this 22nd day of **September 2025**, by and between:

Umbilo Shree Ambalavaanar Alayam (“the Alayam”), a religious and cultural institution situated at 890 Vusi Mzimela Road, Cator Manor, Durban and

Innovate IT (IIE Varsity College Westville Students), with the domicile address being, 1 Link Rd, St James Ave & Link Rd, Westville, 3630, (**“the Partner”**).

1. Purpose

The Partner has been engaged by the Alayam to provide services, which may require access to certain confidential and sensitive information (**“Confidential Information”**). The Partner agrees to protect such information strictly in accordance with this Agreement.

2. Definition of Confidential Information

“Confidential Information” shall include, but is not limited to:

- All internal records, communications, and strategies of the Alayam.
- Financial, legal, and administrative information.
- Membership and devotee information, including personal details.
- Technical, operational, or cultural information relating to the Alayam.
- Any documentation, media, or data provided for the purpose of **The Partner’s** services.
- Information shared or obtained from any person acting in their capacity on behalf of the Alayam.
- Meeting records/ minutes or information shared during contact session in person or electronically.

Confidential Information may be disclosed in oral, written, electronically in person or via any person/body acting for on behalf of the Alayam, or any other form.

3. Obligations of The Partner

The Partner agrees to:

- a) Use Confidential Information solely for the purpose of performing contracted services for the Alayam.

- b) Not disclose, publish, reproduce, or distribute any Confidential Information to third parties without the prior written consent of the Alayam.
 - c) Restrict access to Confidential Information only to employees, agents, or subcontractors who require it to perform the agreed services, and ensure that they are bound by confidentiality obligations no less restrictive than this Agreement.
 - d) Take all reasonable precautions, including technical and organizational measures, to safeguard the confidentiality of the information.
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4. Non-Solicitation

The Partner agrees that, for the duration of this Agreement and for a period of **five (5) years** thereafter, they will not directly or indirectly solicit, approach, or engage with the Alayam's members, devotees, donors, trustees, or affiliated stakeholders for personal, commercial, or competitive purposes without the prior written consent of the Alayam.

5. Intellectual Property (IP) Ownership

- a) All work, designs, source code, content, graphics, documentation, or materials created, developed, or delivered by **The Partner** in the course of providing services to the Alayam ("Deliverables") shall be deemed **the sole and exclusive property of the Alayam**.
 - b) **The Partner** hereby assigns to the Alayam all rights, title, and interest (including copyright and intellectual property rights) in and to such Deliverables.
 - c) **The Partner** shall not use, copy, reproduce, or distribute any Deliverables created for the Alayam for personal or commercial purposes without the Alayam's prior written consent.
 - d) **The Partner** waives any moral rights in respect of the Deliverables to the fullest extent permitted by law.
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6. Exclusions

This Agreement does not apply to information which:

- a) Was already lawfully in **The Partner's** possession prior to disclosure by the Alayam;
 - b) Becomes public knowledge without breach of this Agreement;
 - c) Is independently developed by **The Partner** without reference to the Confidential Information;
 - d) Must be disclosed under applicable law, provided that **The Partner** promptly notifies the Alayam in writing before such disclosure.
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7. Return or Destruction of Information

Upon completion or termination of the services, **The Partner** shall, at the Alayam's election, promptly return or securely destroy all Confidential Information, including all copies, notes, or derivative materials.

8. Duration

This Agreement shall remain in effect for the duration of **The Partner's** engagement with the Alayam and for a period of **five (5) years** thereafter.

9. Breach and Remedies

- a) Any breach of this Agreement will entitle the Alayam to seek immediate injunctive relief, without prejudice to any other legal remedies available, including damages. The Alayam reserves its right to institute immediate legal action for the account of **The Partner**.
 - b) **The Partner** acknowledges that unauthorized disclosure or misuse of Confidential Information may cause irreparable harm to the Alayam and that **The Partner** will be liable for this in all forms.
 - c) **The Partner** shall be liable for all losses, costs, and expenses (including legal fees) incurred by the Alayam as a result of such breach.
 - d) In addition to damages, **The Partner** agrees that in the event of a material breach, they will be liable to pay the Alayam **liquidated damages of R100,000 (One Hundred Thousand Rand)**, which the parties agree is a fair and reasonable estimate of the harm likely to be suffered.
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10. Applicable legislation and Jurisdiction

This Agreement shall be governed by and interpreted in accordance with the laws of the Republic of South Africa. Any disputes arising hereunder shall fall under the exclusive jurisdiction of the courts of **Durban, KwaZulu-Natal**.

Signed at Westville on this 23rd day of September 2025.

For and on behalf of the **Umbilo Shree Ambalavaanar Alayam ("The Alayam")**

Name : Shaun Naidoo

ID No. : 7808205127086

Designation : Chairman

Signature : 

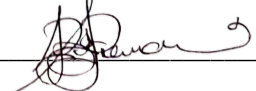
Signed at Home on this 22 day of September 2025.

For and on behalf of **Innovate IT (IIE /Varsity College Westville Students)**, ("The Partner").

Full Name : Miss. Bela Jyoti Premchund

ID No. : 0504300181089

Designation : Project Manager

Signature : 

Full Name : Mr. Sohum Singh

ID No. : 0405265886086

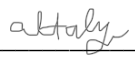
Designation : Head Programmer

Signature : 

Full Name : Mr. Altaaf Ally

ID No. : 0402175680089

Designation : Full Stack Developer

Signature : 

Full Name : Mr. Kayden Padayachee

ID No. : 0403295352088

Designation : Front End Developer

Signature : 

Full Name : Mr. Mohammed Tehzeeb Govind

ID No. : 0405265678087

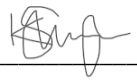
Designation : Back End Developer

Signature : 

Full Name : Miss. Kayla Shunmugan

ID No. : 0307111192083

Designation : Documentation

Signature : 

Full Name : Mr. Imaad Kajee

ID No. : 0306295066089

Designation : Documentation

Signature : 

Full Name : Miss Kimera Pillay
ID No. : 0412120125080
Designation : System Analyst
Signature : 

Disclaimer: This document is the official property of the Umbilo Shree Ambalavaanar Alayam. Any unauthorised alteration, reproduction, or use—whether in whole or in part—is strictly prohibited. All content herein is authentic as at the date of issue and may only be interpreted in the context for which it was originally created. Any manipulation, forgery, or misrepresentation of this document will constitute fraud and may result in civil and/or criminal proceedings under South African law, including but not limited to the provisions of the Prevention and Combating of Corrupt Activities Act 12 of 2004 and the Criminal Procedure Act 51 of 1977.

To verify the authenticity of this document, please contact either the Chairman, Vice Chairman or Secretary of the Umbilo Shree Ambalavaanar Alayam.